

Court No. - 29

Case :- WRIT - C No. - 54279 of 2016

Petitioner :- Kuldip Dubey

Respondent :- U.P. Power Corporation And 2 Others

Counsel for Petitioner :- Dharmendra Kumar Dwivedi

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Tarun Agarwala,J.

Hon'ble Siddhartha Varma,J.

Contention of the petitioner is that in the Bills certain arrears is being shown against which the petitioner has filed a representation which is pending consideration before the Executive Engineer. The contention of the petitioner is that it is not clear as to how the arrears are being shown when all the bills have been paid.

Clause 6.5 of the Electricity Supply Code, 2005, provides for correction of the electricity bill. Since the petitioner has already made a representation, we direct that such a representation would be treated as an application filed under Clause 6.5 of the Electricity Supply Code, 2005.

We dispose of the matter directing the Executive Engineer to passed an appropriate order within two weeks after giving him an opportunity of hearing.

Till the disposal of the representation, the recovery of the arrears as per the bill of September, 2016 shall remain in abeyance.

Order Date :- 16.11.2016

praveen.

(Siddhartha Varma,J.) (Tarun Agarwala,J.)